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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

APPENDIX: AUTHORITIES OMITTED

**APPENDIX OF CONTROLLING AUTHORITIES NOT ADDRESSED
BY DEFENDANTS**

Authorities Necessary To Apply Defendants' Own Doctrines Correctly

PURPOSE

This single-page exhibit accompanies each Opposition. It inventories the controlling California Supreme Court and Court of Appeal authorities that Defendants' briefing does not address, even though those authorities are necessary to a complete and correct application of the very doctrines

Defendants invoke. The Appendix is offered as a navigation aid tying each omitted authority to the corresponding section of Plaintiff’s Oppositions.

PRECEDENT COMPLETENESS INVENTORY

Section A: Authorities Defendants Quoted vs. Authorities Defendants Do Not Address

Authority	Pin-Cite	Plaintiff Section	Defense Use	Correct Use
Flatley v. Mauro (2006) 39 Cal.4th 299	pp. 320-325 (illegal-conduct exception); p. 322 (finality)	Opp. Anti-SLAPP § IV	Quotes only the finality paragraph (p. 322) on “enhancing the finality of judgments.”	Flatley’s holding is that petitioning activity illegal as a matter of law or conceded loses Anti-SLAPP protection; extrinsic fraud on a tribunal falls within that exception.

Authority	Pin-Cite	Plaintiff Section	Defense Use	Correct Use
Park v. Board of Trustees (2017) 2 Cal.5th 1057	pp. 1062-1064 (gravamen filter); p. 1064 ("speech or petitioning activity itself")	Opp. Anti-SLAPP § II	Quotes the "speech or petitioning activity itself" phrase at p. 1064 and applies it at step two.	Park requires isolating the injury-producing act at step one and distinguishing protected activity from acts that merely supply evidence of a claim.
Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995	pp. 1010-1012	Opp. Anti-SLAPP § II	Not addressed.	Bonni is the current controlling Supreme Court authority and requires a claim-by-claim and act-by-act gravamen analysis; label-based analysis is reversible error.

Authority	Pin-Cite	Plaintiff Section	Defense Use	Correct Use
Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871	p. 884	Opp. Anti-SLAPP § II	Not addressed.	The protected act must be an element of the claim, not merely evidence of it.
Moradi-Shalal v. Fireman's Fund (1988) 46 Cal.3d 287	p. 305 (preservation of common law fraud)	Opp. Demurrer § III	Cites pp. 292-304 for the immunity rule.	Moradi-Shalal expressly preserves common law fraud claims against insurers; those claims survive.
Pollock v. Superior Court (USC) (2003) 112 Cal.App.4th 1416	pp. 1422-1423	Opp. Anti-SLAPP § III	Quoted for “doubts resolved in favor of privilege.”	Pollock’s doubt-resolution canon applies only after the privilege’s coverage is established; it does not displace Park’s gravamen filter or the extrinsic-fraud exception.

Section B: Authorities Defendants Do Not Cite At All

Authority	Pin-Cite	Plaintiff Section	Holding	Correct Use
Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232	pp. 1242-1245	Opp. Anti-SLAPP § IV; Opp. Demurrer § IV	Extrinsic fraud is a recognized exception to the litigation privilege.	Defeats the blanket-privilege argument where extrinsic fraud is pleaded.
Kimmel v. Goland (1990) 51 Cal.3d 202	pp. 211-212	Opp. Anti-SLAPP § III; Opp. Demurrer § IV	Section 47(b) protects communications, not all litigation-related conduct.	Noncommunicative conduct (file transfers, production-history conveyance, agency oversight) is outside the privilege's scope.

Authority	Pin-Cite	Plaintiff Section	Holding	Correct Use
Rusheen v. Cohen (2006) 37 Cal.4th 1048	pp. 1057-1062	Opp. Anti-SLAPP § III.D	“Necessarily related” test confines privilege to acts tethered to a privileged communication.	Institutional and pre-/post-litigation duties are not necessarily related to any specific privileged communication.
Crowley v. Katleman (1994) 8 Cal.4th 666	pp. 681-682	Opp. Demurrer § V	Collateral estoppel requires a primary-rights mapping between actions.	Defendants invoke preclusion without conducting the required primary-rights analysis.
Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696	pp. 702-705	Opp. Anti-SLAPP § IV	False-police-report/fabricated evidence conduct is illegal as a matter of law under Flatley.	Pairs with Flatley to frame extrinsic fraud as conduct illegal as a matter of law.

Section C: Statutory Text Defendants Quoted Without Complete Application

Statute	Plaintiff Section	Defense Use	Correct Use
Code Civ. Proc. § 425.16	Opp. Anti-SLAPP § II	Recited the two-step framework.	Step one requires the Park/Bonni gravamen filter before any step-two inquiry.
Civ. Code § 47(b)	Opp. Anti-SLAPP § III; Opp. Demurrer § IV	Recited the “absolute privilege” language.	Privilege is limited to communications (Kimmel/Rusheen) and is subject to the extrinsic-fraud exception (Action Apartment).
Code Civ. Proc. § 904.1	Opp. Demurrer § VI	Treated as a jurisdictional bar to the present action.	Section 904.1 is an appellate-routing statute; it does not bar independent equitable actions for extrinsic fraud.
Code Civ. Proc. § 430.70 / Evid. Code § 452	Opp. Demurrer § II; Pl. Objection to RFJN	Asked the Court to notice truth of document contents.	Judicial notice extends to the existence of records, not the truth of disputed factual contents.

Section D: Authorities Post-Dating or Refining Defense Citations

Courts give particular weight to later controlling authority that refines or supersedes earlier cases on which a party relies. The following later authorities refine doctrines Defendants invoke but are not addressed in their briefing.

Earlier Authority Relied Upon by Defendants	Later Authority Refining or Superseding	Pin-Cite	How the Later Authority Refines the Earlier One
Park v. Board of Trustees (2017) 2 Cal.5th 1057	Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995	pp. 1010-1012	Post-Park; requires claim-by-claim, act-by-act gravamen analysis. Label-based categorization is reversible error.
Park v. Board of Trustees (2017) 2 Cal.5th 1057	Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871	p. 884	Clarifies the element-versus-evidence distinction: protected activity must be an element of the claim, not merely evidentiary.
Rusheen v. Cohen (2006) 37 Cal.4th 1048 (cited by Defendants' privilege theory)	Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232	pp. 1242-1245	Confirms the extrinsic-fraud exception to Civ. Code § 47(b) survives Rusheen.
Flatley v. Mauro (2006) 39 Cal.4th 299 (finality paragraph only)	Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696	pp. 702-705	Applies Flatley's illegal-as-a-matter-of-law exception to fabricated-evidence conduct.

COMPLETENESS BY DEFENSE DOCUMENT

Anti-SLAPP MPA (Clerk File No. 10152305)

Page:Line	Citation	Defense Use	Correct Use
p. 9, ll. 17-21	Flatley	Quoted finality rationale.	Illegal-conduct exception (pp. 320-325) applies to extrinsic fraud.
p. 13, ll. 20-22	Park	Deployed at step two.	Park requires a step-one gravamen filter; Bonni (2021) and Wilson (2019) further require claim-by-claim, element-based analysis.
p. 12, ll. 27-28	Pollock	Recited doubt-resolution rule.	Doubt-resolution applies only after coverage; it does not displace gravamen analysis or the extrinsic-fraud exception.
[Not addressed]	Action Apartment	—	Recognizes extrinsic-fraud exception to § 47(b).
[Not addressed]	Kimmel / Rusheen	—	Privilege is limited to communications and to acts “necessarily related” to a privileged communication.

Page:Line	Citation	Defense Use	Correct Use
[Not addressed]	Bonni / Wilson	—	Current controlling Supreme Court authority on Anti-SLAPP step one.

Demurrer MPA (Clerk File No. 10157174)

Page:Line	Citation	Defense Use	Correct Use
p. 11, ll. 18-22	Kulchar	Recited definition of extrinsic fraud.	Extrinsic/intrinsic line is fact-intensive and cannot be resolved on demurrer where extrinsic conduct is pleaded.
p. 11, ll. 13-14	Aldrich	Quoted “extrinsic” definition; asserted intrinsic without analysis.	Application requires mapping of pleaded facts against the extrinsic-fraud elements.
p. 9, ll. 6-11	Code Civ. Proc. § 904.1	Treated as jurisdictional bar.	Appellate-routing statute; independent equitable actions for extrinsic fraud are not barred.
[Not addressed]	Crowley	—	Primary-rights mapping is prerequisite to any preclusion argument.

Page:Line	Citation	Defense Use	Correct Use
[Not addressed]	Moradi-Shalal p. 305	—	Preserves common law fraud claims against insurers.

CANDOR CONSIDERATIONS

Rule of Professional Conduct 3.3(a)(2) and California authority on candor to the tribunal speak to the disclosure of directly adverse controlling authority. Without attributing intent, and without seeking sanctions, the Court is respectfully asked to consider the completeness of the authority presented, including the authorities catalogued above that refine or qualify the very doctrines on which Defendants rely.

This Appendix is not a motion for sanctions. It is offered as a navigation aid and a completeness record so that the Court may apply each doctrine Defendants invoke together with the controlling authorities necessary to apply that doctrine correctly.

CONCLUSION

Defendants’ briefing collects a substantial number of citations. When the authorities catalogued above are restored to the analysis, the following points emerge:

1. **Park/Bonni/Wilson** require a claim-by-claim, element-based gravamen filter at Anti-SLAPP step one that Defendants’ briefing does not undertake.
2. **Flatley** (and **Lefebvre**) contain an illegal-conduct exception that Defendants do not address.
3. **Action Apartment** recognizes an extrinsic-fraud exception to Civ. Code § 47(b) that Defendants’ briefing does not discuss.
4. **Kimmel** and **Rusheen** confine privilege to communications and to acts “necessarily related” to a privileged communication.
5. **Crowley** requires a primary-rights mapping before any preclusion ruling.

6. **Moradi-Shalal** at p. 305 preserves common law fraud jurisdiction against insurers. The Court is respectfully asked to apply each doctrine together with the controlling authorities that govern its correct application.

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO